

SENATE No. 1187

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to prevent human trafficking through increased public awareness.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/12/2025</i>

SENATE No. 1187

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 1187) of Mark C. Montigny for legislation to prevent human trafficking through increased public awareness. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1063 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to prevent human trafficking through increased public awareness.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 6C of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by adding the following sections:-

3 Section 80. (a) The department shall display public awareness signs that contain the
4 National Human Trafficking Resource Center Hotline, or a successor hotline, along with basic
5 information regarding the signs of human trafficking, in every transportation station, rest area,
6 and welcome center that is open to the public.

7 (b) Massachusetts Bay Transit Authority stations, busses, trains, subway cars, street cars,
8 and passenger vehicles shall display, in a conspicuous location, public awareness signs that
9 contain the National Human Trafficking Resource Center Hotline, or a successor hotline, along
10 with basic information regarding the signs of human trafficking.

11 (c) Regional Transit Authority stations, busses, and passenger vehicles shall display, in a
12 conspicuous location, public awareness signs that contain the National Human Trafficking
13 Resource Center Hotline, or a successor hotline, along with basic information regarding the signs
14 of human trafficking.

15 (d) Massachusetts Port Authority airports and ferry terminals shall display, in a
16 conspicuous location, public awareness signs that contain the National Human Trafficking
17 Resource Center Hotline, or a successor hotline, along with basic information regarding the signs
18 of human trafficking.

19 Section 81. The department shall promulgate rules and regulations, in collaboration with
20 the Massachusetts Bay Transportation Authority, regional transit authorities, and Massachusetts
21 Port Authority, to provide anti-human trafficking education and training for all new and existing
22 employees, including but not limited to bus drivers, street car and train operators, ferry boat
23 operators, venders and ticket collectors, custodial and sanitation workers, mechanics, and any
24 other employee having frequent interaction with the public or who may come in contact with a
25 victim of human trafficking, or is likely to receive in the course of their employment a report
26 from another employee about suspected human trafficking.

27 The anti-human trafficking education and training may be incorporated into existing
28 employment training programs and, at a minimum, shall include:

- 29 (i) the definition of commercial exploitation, human trafficking, sex trafficking, and
30 labor trafficking;
- 31 (ii) common physical and emotional signs of human trafficking in victims;

(iii) guidance and emergency response training for employees who encounter suspected human trafficking activities including protocols on how to report suspected human trafficking activity, including but not limited to, national anti-human trafficking hotlines (1-888-373-7888 and text line 233733), state and local police, and any appropriate federal law enforcement authorities; and

(iv) education on identifying potential victims and vulnerable populations most at risk to be victims of human trafficking.

The department may collaborate with public entities and non-profit organizations for the acquisition of educational materials, trainings, or other resources to carry out said regulations; provided further, that the department shall review and periodically update said regulations at least once biannually in order to ensure education and training programs incorporate best practices to combat human trafficking and provide appropriate assistance to victims.

SECTION 2. Section 8 of chapter 90F of the General Laws as so appearing, is hereby amended by inserting at the end thereof the following paragraphs:-

A person convicted of trafficking of persons for sexual servitude under section 50 of chapter 265, trafficking of persons for forced services under section 51 of said chapter 265, or under 18 U.S.C. § 1581, 1583, 1584, 1589, 1590, or 1591 shall be disqualified from obtaining any license to operate a commercial motor vehicle as defined by section 1.

No person, having been disqualified from obtaining a commercial motor vehicle license under this section shall have said license reinstated for any reason except in such case wherein the convicted person has been granted judicial relief by a state or federal court of competent

jurisdiction on grounds which tend to establish the innocence of the individual as prescribed by section 1(C) of chapter 258D.

SECTION 3. Chapter 111 of the General Laws, as so appearing, is hereby amended by inserting after section 51L the following section:-

Section 51M. The department shall require each hospital licensed pursuant to this chapter to display, in a conspicuous location, public awareness signs that contain the National Human Trafficking Resource Center Hotline, or a successor hotline, along with basic information regarding the signs of human trafficking.

SECTION 4. Section 2 of chapter 159A ½ of the General Laws, as so appearing, is hereby amended by inserting after subsection (m) the following subsections:-

(n) In consultation with the registry of motor vehicles, the division shall provide for the establishment of removable decals to be placed in a conspicuous place within the vehicle that contain the National Human Trafficking Resource Center Hotline, or a successor hotline, along with basic information regarding the signs of human trafficking.

(o) The department shall promulgate rules and regulations requiring transportation network companies to provide anti-human trafficking education materials to all new and existing transportation network drivers as defined in section 1 of this statute. The materials shall include:

(i) the definition of commercial exploitation, human trafficking, sex trafficking, and labor trafficking;

(ii) common physical and emotional signs of human trafficking in victims;

(iii) guidance and emergency response tips for drivers who encounter suspected human trafficking activities including protocols on how to report suspected human trafficking activity, including but not limited to, national anti-human trafficking hotlines (1-888-373-7888 and text line 233733), state and local police, and any appropriate federal law enforcement authorities; and

(iv) education on identifying potential victims and vulnerable populations most at risk to be victims of human trafficking.

The department may collaborate with non-profit organizations or other state or federal agencies for the creation, procurement, and distribution of said educational materials to transportation network companies and drivers.

SECTION 5. Section 4(b) of chapter 159A ½ of the General Laws, as so appearing, is hereby amended by inserting at the end thereof the following:-

(ix) has given written confirmation of the receipt of anti-human trafficking educational materials to the transportation network company pursuant to section 2(o) of this chapter. The transportation network company shall retain such receipt from the driver for the duration of the driver's certificate.

SECTION 6. Section 100A of chapter 265 of the General Laws, as so appearing, is hereby amended by inserting at the end thereof the following paragraph:-

A person convicted under section 50 or 51 of chapter 265 of the General Laws or U.S.C. § 1581, 1583, 1584, 1589, 1590, or 1591 shall not be eligible to seal said records under section 100A of chapter 276 of the general laws.

94 SECTION 7. The department shall promulgate regulations pursuant to section 1 within
95 180 days from the effective date of this act.

96 SECTION 8. The department shall promulgate regulations pursuant to section 4 within
97 180 days of the effective date of this act.